

NY.1 Who Enforces Your House

Which of three governments issues your permit, the workers' compensation form that gates it, and the court-set date that decides whether you may run a gas line.

Before you use this document

This is a process reference, not legal advice. New York adopts one Uniform Code for every parcel in the state outside New York City and then lets your permit office be one of three governments: your town, village or city; your county; or the Department of State. The code itself never lapses, so the question that dominates most states in this series — will anyone inspect this house? — has a statutory answer here. What does vary: the fee, the local law's exemption list, the electrical inspection agency your office has approved, and the frost, snow and wind numbers it has written into Table R301.2. Confirm every item with the office that will actually handle your parcel before you rely on it.

Start with the sentence that settles the question most guides spend a page hedging. It is state policy to “**insure that the uniform code be in full force and effect in every area of the state**” (Executive Law § 371(2)(c)), and the code “shall supersede any other provision of a general, special or local law, ordinance, administrative code, rule or regulation inconsistent or in conflict therewith” (§ 383(1)). There is no rural exception, no acreage exception and no county that has escaped it. Outside New York City, the 2025 Uniform Code is the code your house must meet.

What varies is **who administers it on your lot**. New York is often described as having towns that “opted out” of the code. The word appears nowhere in the statute: a local government may decline to *enforce*, and the job then passes to the county, and from the county to the Department of State. Nobody is ever left without a permit office. What changes is which office, which fee, which local law and which inspector.

The error this document exists to correct

There is no owner-builder exemption in New York, and guides that promise you one are describing another state. New York issues no contractor license, so there is nothing to be exempt from. What New York has instead — and what no owner-builder page prints — is a **permit gate about employees, not licenses**: General Municipal Law § 125. That section, the enforcement ladder, and the all-electric clock are the three things this document is about.

FIRST: WHICH GOVERNMENT ISSUES YOUR PERMIT

Executive Law § 381(2) is the section that does the work. It is long, and it is worth reading in the statute's own words because every guide paraphrases it into something it does not say.

Executive Law § 381(2) — who administers and enforces

“Except as may be provided in regulations of the secretary pursuant to subdivision one of this section, **every local government shall administer and enforce** the uniform fire prevention and building code and the state energy conservation construction code on and after the first day of January, nineteen hundred eighty-four, provided, however, that a local government may enact a local law prior to the first day of July in any year providing that it will not enforce such codes on and after the first day of January next succeeding.

In such event **the county** in which said local government is situated shall administer and enforce such codes within such local government ... unless the county shall have enacted a local law providing that it will not enforce such codes within that county. In such event **the secretary** in the place and stead of the local government shall, directly or by contract, administer and enforce the uniform code and the state energy conservation construction code. ... Local governments or counties may charge fees to defray the costs of administration and enforcement.”

“Local government” is defined at § 372(11) as “a village, town (outside the area of any incorporated village) or city.” A county is not a local government under Article 18 — it is the first fallback. The same subdivision lets two or more local governments run a joint program under General Municipal Law Article 5-G, and lets a local government contract with its county, which is why several counties run enforcement for many of their towns by agreement.

The three rungs — Executive Law § 381(2)

	Permit office	What it means for you
1	Your town, village or city	The default. The local government runs a code enforcement program under its own local law, which must meet the Part 1203 floor. You apply at the town, village or city hall; the fee is set by that legislative body's resolution. Inside an incorporated village, the village is your local government, not the town around it.
2	Your county	Where the local government enacted a local law declining to enforce — or contracted the job to the county under § 381(2). The county's code office issues the permit and sends the inspector. The local government “shall not administer and enforce the uniform code, and shall not charge or collect fees” (§ 381(5)(a)).
3	The Department of State	Where the county also declined, or where DOS has taken a program over. 19 NYCRR Part 1202 governs: the permit issues “from the department” (§ 1202.3(a)), the application is signed by the building owner and the landowner if different, you supply the snow, wind, frost and seismic design criteria (§ 1202.12), and you pay any third-party inspection fee. DOS says it holds this role for “only a limited number of local governments.” NY.4 has the detail.

No list of which rung applies where was retrievable when this kit was assembled, and this kit does not guess. The answer is one question to one clerk, and it is the most valuable question you will ask all year.

Find your rung — do these in order

	Item	Date	Confirmed with / notes
☐	Identify whether the parcel is inside an incorporated village. If it is, the village is your local government; if not, the town (or the city).		
☐	Ask that local government's clerk: "Does the municipality have a code enforcement program under 19 NYCRR Part 1203, and who is the code enforcement officer?" If yes, you are on rung 1.		
☐	If the clerk says the town does not enforce, ask whether the county administers the Uniform Code there, and which county office. If yes, rung 2.		
☐	If neither, the Department of State is your permit office under Part 1202. Start at the DOS regional office for your county — NY.4 has the address.		
☐	Ask whichever office answers for a copy of its code enforcement local law and its current fee schedule . Part 1203 sets no fee and no review clock; the local law does.		
☐	Get the answer in writing, date it, and write it on the directory page in NY.4. The office that issues the permit is the office whose inspector signs your certificate of occupancy.		

Why the rung changes the process but not the house. No municipality "shall have the power to supersede, void, repeal or make more or less restrictive any provisions of this article" (Executive Law § 379(3)); a stricter local construction standard exists only where the State Fire Prevention and Building Code Council has approved it (§ 379(1)-(2)), and a building official may not "waive, vary, modify, or otherwise alter" any provision ([NY] R104.2.2). What stays local is everything "as to which the uniform fire prevention and building code does not provide" — zoning, fees, the optional exemption list, and trade licensing.

WHAT NOBODY CAN ASK YOU FOR: A CONTRACTOR LICENSE

New York issues no general contractor, electrician or plumber license at state level — not to you, and not to the people you hire. The Division of Building Standards and Codes states it on its own FAQ page: "**Issues regarding local laws, zoning, and licensing of contractors or electricians are not handled by this Division.**" Executive Law Article 18 contains no licensing provision. There is no owner-builder exemption in New York because there is nothing to be exempt from.

Two things follow. **Whether you may do your own wiring or plumbing is a local licensing question**, decided by the municipality under § 379(3); there is no statewide registry, so ask the clerk and the county consumer-affairs office whether a local electrician, plumber or home-improvement license law exists (NY.4 sets out the five county laws that were

read). And **a manufactured home is a different path** — 19 NYCRR Part 1210 certifies installers, and an owner-occupant “may apply for certification as the installer” (DOS FAQ) — which this kit does not cover.

THE PERMIT GATE: GENERAL MUNICIPAL LAW § 125

This is the page no other New York owner-builder guide has, so here is the statute itself, verbatim and complete.

General Municipal Law § 125 — building permits; workers' compensation

“No city, town or village shall issue a building permit without obtaining from the permit applicant either:

1. proof duly subscribed that workers' compensation insurance and disability benefits coverage issued by an insurance carrier in a form satisfactory to the chair of the workers' compensation board as provided for in section fifty-seven of the workers' compensation law is effective; or
2. **an affidavit that such permit applicant has not engaged an employer or any employees** as those terms are defined in section two of the workers' compensation law to perform work relating to such building permit.”

Workers' Compensation Law § 57(1) reaches the same result from the other side: the head of any state or municipal office “authorized or required by law to issue any permit for or in connection with any work involving the employment of employees in a hazardous employment ... shall not issue such permit unless proof duly subscribed by an insurance carrier is produced in a form satisfactory to the chair, that compensation for all employees has been secured.” Note who the statute binds: § 125 names cities, towns and villages; § 57 names every permit-issuing office, which is how the requirement follows your permit up the ladder to a county or to DOS.

So the section gives an owner-builder exactly two doors, and the Workers' Compensation Board publishes the form behind each.

The two doors, and the Board's forms for each

Door	What you file
Door 1 — you carry a policy	Your carrier sends the permit office Form C-105.2 , Certificate of Workers' Compensation Insurance (the State Insurance Fund uses its own Form U-26.3), and Form DB-120.1 , the disability and Paid Family Leave certificate. The Board cannot issue either to you directly, and the name and federal ID on the form must exactly match the applicant. “ACORD forms are not acceptable proof of New York State workers' compensation coverage under WCL § 57.”

The two doors, and the Board's forms for each

Door	What you file
Door 2 — you have no employees	You obtain a Certificate of Attestation of Exemption, Form CE-200 , through New York Business Express at businesssexpress.ny.gov . A NY.gov Business account is required. Under How to Apply, the Board's instruction sheet says: "Select Apply as a Homeowner (applies to those obtaining permits to work on their residence)." Print it, sign it, submit it with the application. The certificate carries a number the permit office can validate online.

Forms from the Board's own sheet "Requirements for businesses applying for government permits, licenses, or contracts" (BIZ-ContractREQs-fs-1) and its CE-200 instruction sheet (WCB-Exemption-Instr-1). **The rule that bites:** "Certificates for building permits are **job-specific** and a separate certificate will be required for each building permit." A CE-200 for the house does not cover a later permit for the garage, and it "CAN NOT be used to show another business or that business's insurance carrier that coverage is not required."

The question the form does not answer for you

The CE-200 attests that you have "not engaged an employer or any employees." An owner who hires **insured subcontractors** is not thereby the employer of the subs' workers — collect each trade's C-105.2 and DB-120.1 naming you as certificate holder, and check them.

An owner who hires individuals by the hour to swing hammers **may be** an employer under Workers' Compensation Law § 2. That is a legal question this kit does not resolve; the Board or a lawyer does. What this kit will say: do not sign an attestation you are not sure is true, because the permit rests on it.

The Scaffold Law has a homeowner exception, and it turns on the same behavior. Labor Law § 240(1) imposes its elevation-hazard duty on "all contractors and owners and their agents, **except owners of one and two-family dwellings who contract for but do not direct or control the work.**" An owner-builder who hires trades and stays out of the means and methods is inside the exception; one who supervises the framing crew from the deck may not be. The statutory phrase is printed here; the case law on "direct or control" is not summarized.

THE CODE YOU ARE BUILDING TO — 2025, SINCE 31 DECEMBER 2025

The 2025 Uniform Code (19 NYCRR Parts 1219–1229) and the 2025 Energy Code (Part 1240) were adopted 5 December 2025 and took effect **31 December 2025**; the option to build to the 2020 edition closed that day ([NY] R102.6). The eight code books are each "(publication date: July 2025), published by the International Code Council" (§ 1219.2(a)) — "based on the 2024 International Code Council books with New York modifications," in DOS's words.

Three books bind a house. The **2025 Residential Code of New York State** (RCNYS) covers detached one- and two-family dwellings and townhouses not more than three stories above grade plane; an applicant may elect the Building Code instead for the whole building (§ 1220.2(a), (d)). Its Electrical Part, Chapters 34–43, "is based on the **2023 National**

Electrical Code (NFPA 70—2023),” and anything not covered “shall comply with the applicable provisions of NFPA 70” (Chapter 34 header; E3401.2) — **the edition does not vary by town**. And the **2025 Energy Conservation Construction Code** (ECCCNYS), Residential Provisions (§ 1240.4(a)), carries New York's own insulation, window and air-leakage values — NY.2 prints them.

The code is the regulation, not the book (DOS bulletin 2026-1: “The regulations must be examined prior to reviewing the publications”). Any RCNYS section printed with a **[NY]** tag is a New York amendment. **No grandfathering rule was found** for a permit applied for before 31 December 2025 — if yours was in review on that date, ask the office which edition it is reviewing against.

THE ALL-ELECTRIC PROVISION — A DATED STATUS BOX

Executive Law § 378(19)(a) directs that the Uniform Code “shall prohibit the installation of fossil-fuel equipment and building systems, in any new building not more than seven stories in height ... on or after December thirty-first, two thousand twenty-five.” The rule that implements it is 19 NYCRR Subpart 1229-2 (and § 1240.6 in the Energy Code). Both are **suspended by a federal court order** as this kit goes to print, and the suspension has a clock. Read the box; then check the date before you file.

Status on 3 September 2026 — check before you file

The trigger is the application date, not the occupancy date. The prohibition reaches buildings “for which a **substantially complete building permit application** for the initial construction of such building is submitted on or after” the effective date (19 NYCRR § 1229-2.4(a)(1)). A substantially complete application is one with enough information under the stricter of your office's program or Part 1203 “such that the authority having jurisdiction can examine the application” (§ 1229-2.3(20)). A complete application in before the suspension lifts is outside the prohibition, whenever the house is built.

The suspension. In *Mulhern Gas Co. v. Mosley* (N.D.N.Y. 1:23-cv-01267), a Stipulation and Order signed **18 November 2025** (Dkt. 75) provides that the effective date of Subpart 1229-2 and § 1240.6 “is hereby suspended, pending final disposition of the Plaintiffs' appeal in the Second Circuit and the disposition of any petition for a writ of certiorari” (§ 2), and that “if no writ of certiorari is timely sought, this suspension shall terminate automatically **120 days after the issuance of the mandate** of the Second Circuit” (§ 4).

The clock. The Second Circuit affirmed on **30 June 2026**. Rehearing en banc was denied **26 August 2026**. The mandate issued **2 September 2026** (docket 25-2041). One hundred and twenty days from the mandate is **31 December 2026**. A petition for certiorari is due about **24 November 2026**; if one is filed, the suspension continues to the 120th day after its denial, or after a Supreme Court judgment. **The widely reported date of 28 October 2026 is wrong** — it counts from the decision, and the stipulation counts from the mandate.

DOS's own status line, on its Notice of Adoption page (“Update on Recent Court Ruling – July 2, 2026”): the provisions “continue to be suspended by Court Order and are neither effective nor enforceable.” **Before you file, read that page and the docket.** If the suspension has ended, a substantially complete application submitted that day is inside the prohibition.

*What the rule does not exempt, if it takes effect: § 1229-2.5 lists manufactured homes, agricultural buildings, emergency and standby power, and a grid-infeasibility exemption on “a written determination, issued by local utility ... indicating that new or expanded electric service cannot be reasonably provided.” **Nothing in Subpart 1229-2 exempts a single-family house, a wood stove, a propane range, or a generator used for anything but emergency or standby power.** Equipment is “fossil-fuel equipment” if it “uses fossil-fuel for combustion” (Exec. Law § 378(19)(g)(i)).*

ELECTRICAL — THE INSPECTOR YOUR OFFICE HAS APPROVED

The code book says new electrical work “shall be inspected by the building official” (E3403.2). The rule above the book is more specific: electrical inspections are **special inspections**, and an office “shall not accept or rely upon a special inspection unless the person performing such special inspection (i) is a qualified person employed or retained by **an agency that has been approved by the authority having jurisdiction**” (19 NYCRR § 1203.2(e)(4)). Most building departments employ no electrical inspector and accept certificates from third-party agencies they have approved; there is no state list. NY.3 walks the track — and the 30-day order-to-remedy clock, the \$1,000-a-day penalty that names “any owner, builder,” and your Part 1205 appeal to a regional board of review, decided in 60 days. The one instruction that belongs here: **get your office's approved-agency list before you buy wire.**

The sentence in the code that no other state has

[NY] E3401.2.1 Owner-occupied one-family dwellings. “Owner-occupied one-family dwellings and accessory structures **shall not be required to be provided with electrical power, wiring, devices and equipment**, unless expressly required by statute, local law, ordinance, or other regulations. If an on-site electrical power system is installed or used, all electrical wiring, devices and equipment in such system shall comply with Part VIII—Electrical of this code.”

An owner-occupied off-grid house is lawful under the Uniform Code; a rented one is not. Nothing similar exists for plumbing. Check the local law — the section defers to it — before you rely on this.

WRITE DOWN WHAT YOU CONFIRMED

Everything above is statewide. These answers are yours alone, and every later document in this kit depends on them.

Your enforcement picture

	Item	Date	Notes
☐	Town / village / city, and county Municipality _____ County _____		
☐	Which rung issues my permit (1 local, 2 county, 3 DOS), and who told me Rung _____ Confirmed by _____		
☐	The code enforcement office and officer by name Office _____ Officer _____		
☐	Which door I am using under GML § 125 — CE-200 as a homeowner, or carrier forms C-105.2 and DB-120.1: Door _____ CE-200 number _____		
☐	Does the municipality or county license electricians, plumbers or home-improvement contractors? Which? Answer _____		
☐	The electrical inspection agency the office has approved, and whether the office will accept a homeowner's own wiring: Agency _____ Own wiring? _____		
☐	All-electric status on the day I file — suspended or in effect — and the source I read it from: Status _____ Source _____		

Sources — every New York claim in this document (verified September 2026)

What this document states	Authority
The Uniform Code is in force in every area of the state; New York City keeps its own code	Exec. Law §§ 371(2)(c), 383(1), 383(1)(c)
The enforcement ladder: local government → county → DOS	Exec. Law § 381(2); § 372(11)
Where DOS is the permit office: owner and landowner sign; owner supplies design criteria; third-party fees; the displaced town may not charge	19 NYCRR §§ 1202.1(c), 1202.3, 1202.12; Exec. Law § 381(5)(a)

Sources — every New York claim in this document (verified September 2026)

What this document states	Authority
No municipality may make the code more or less restrictive; zoning and licensing stay local; no official may waive a provision; licensing is not a DOS matter	Exec. Law § 379(1)-(3); 2025 RCNYS [NY] R104.2.2; DOS Division FAQ
No permit without carrier proof or an affidavit of no employees	GML § 125; WCL § 57(1)
C-105.2, U-26.3, DB-120.1; ACORD not acceptable; CE-200 via Business Express; homeowner path; job-specific; Scaffold Law homeowner exception	WCB BIZ-ContractREQs-fs-1; WCB-Exemption-Instr-1; WCB CE-200 pages; Labor Law § 240(1)
2025 codes adopted 5 Dec 2025, effective 31 Dec 2025; 2024 I-Code basis; Electrical Part NEC 2023-based	19 NYCRR § 1219.2(a); DOS 2026-1; 2025 RCNYS Ch. 34 header
All-electric statute and rule; the application-date trigger	Exec. Law § 378(19); 19 NYCRR §§ 1229-2.3(20), 1229-2.4(a)(1), 1229-2.5
Suspension; 120 days from the mandate	Mulhern Gas v. Mosley, N.D.N.Y. Dkt. 75 ¶¶ 2, 4
Affirmed 30 Jun 2026; rehearing denied 26 Aug 2026; mandate 2 Sep 2026	2d Cir. No. 25-2041 docket
Electrical inspections are special inspections; approved agency only	19 NYCRR § 1203.2(e)(4); 2025 RCNYS E3403.2
Owner-occupied one-family dwellings need no electrical system	2025 RCNYS [NY] E3401.2.1

Everything cited here is free to read, in three places. Statutes are at nysenate.gov/legislation/laws/EXC/381 — swap **EXC** for **GMU**, **WKC**, **EDN**, **GBS**, **LIE** or **LAB** and the number for the section. The rules (19 NYCRR Parts 1202, 1203, 1205, 1219–1229, 1240) are the Department of State's own rule-text PDFs at dos.ny.gov. The 2025 code books are free at codes.iccsafe.org/content/NYSRC2025P1 (residential) and [NYSECC2025P1](https://codes.iccsafe.org/content/NYSECC2025P1) (energy). **One warning:** the code is the regulation plus the book, and Westlaw's NYCRR still showed the 2020 edition for Parts 1219–1229 nine months after the 2025 rule took effect — read the DOS PDFs, not Westlaw. Read September 2026.